

HOUSE BILL 903

By Vital

AN ACT to amend Tennessee Code Annotated, Title 10,
Chapter 7, relative to open records.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 10-7-503(a)(7)(A)(i), is amended by deleting the following language:

A governmental entity shall not require a written request or assess a charge to view a public record unless otherwise required by law.

and substituting instead:

A governmental entity shall not require a written request or assess a charge to view a public record unless otherwise required by law or as provided in subdivision (a)(8).

SECTION 2. Tennessee Code Annotated, Section 10-7-503(a), is amended by adding the following as a new subdivision:

(8) A records custodian may require a requestor to pay a fee to view records if the records requested reasonably require more than one (1) hour of an employee's time to collect for inspection by the requestor. A records custodian shall not assess a fee for the first hour an employee works on a request. After the first hour, the records custodian may charge a fee at an hourly rate that is in proportion to the rate of pay of the employee who is collecting the records.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.